

What the Hamble Is Asked to Prove, and by Whom

Edition 1 in the River Hamble environment and development series, scoped to the consenting, habitat and partnership functions rather than to navigation or finance.

Cycle: 18 September 2026 · Audience: Environment and Development Manager, and convener of the Hamble Estuary Partnership · Horizon: to 2032

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What you will learn

1. Why the standard of proof on this estuary is being reset by four different bodies in the same year
2. Which hectares of new saltmarsh can earn a carbon credit here, and which cannot
3. What a harbour authority can actually do about a pressure it has no power to license

Key takeaways

1. The Solent is named for a nutrient Environmental Delivery Plan, and nothing published says how that meets the consents already granted
2. Sacrificial anodes alone were estimated to push this estuary past the zinc standard, and no consent covers an anode
3. Compensatory habitat is legally required, so under the draft carbon code it earns nothing

Why This Matters Now

Four things this authority is answerable for are being decided somewhere else this year. The rules for mitigating nutrient pollution in the Solent are being replaced by a national levy. The carbon value of saltmarsh is being priced by a code whose rules exclude the kind of marsh a harbour would build. The chemicals that most affect the river's water quality are approved by a chemicals regulator. And the partnership that speaks for the estuary has no powers at all, by design.

None of this is an attack on the harbour. It is a drift in where proof lives. Every one of these systems asks the authority to demonstrate something, and every one of them puts the evidence, the price and the timetable in someone else's hands. Meanwhile the clearest measured harm in the river comes from sacrificial anodes and hull paint, which no consent of this authority has ever touched.

The one thing to take into the next meeting: the gap is not between what the harbour wants and what it is allowed to do, it is between what the harbour is accountable for and what it can require anyone to prove.

Executive Synthesis

Which of the things this authority is held accountable for can it actually require anybody to demonstrate?

The duty to conserve the estuary's habitats sits with the harbour, while the nutrient standard, the carbon rules, the antifouling approvals and the recreational disturbance tariff are all set and priced by other bodies, and the largest measured metal load in the river is generated by an item of routine maintenance that no consent covers.

Start with the one dated thing. On 10 September 2026 the Nature Restoration Levy Regulations were made, bringing into force a charging and enforcement regime run by Natural England under Part 3 of the Planning and Infrastructure Act 2025 ([SI 2026/1020](#), Sep 2026). Seven days later the first Environmental Delivery Plan went out to consultation, covering nutrient pollution in Norfolk and closing on 27 October ([Natural England](#), Sep 2026). The Solent is named in the first tranche of 16 nutrient catchments in the implementation plan ([the implementation plan](#), Aug 2026), so the question is not whether this reaches the Hamble but in what order and on what terms. What has not happened is any published account of how the new regime meets the old one. Natural England's nutrient calculator guidance, which is the methodology every current Solent appropriate assessment rests on, was last updated on 11 March 2026 and does not mention plans, levies or the fund at all ([Natural England](#), Mar 2026). Two systems, no stated join.

That matters here for a reason specific to this post. Under nutrient neutrality the authority's own appropriate assessment carries the burden: mitigation is identified, evidenced and secured case by case, and Natural England advises. Under the new

arrangement Natural England identifies the conservation measures, collects a pooled levy and delivers the measures itself ([Natural England](#), Apr 2026). The adviser becomes the deliverer, the market maker and the counterparty. For a competent authority that must still reach its own conclusion on a works consent, the practical question is what evidence it will be shown, and by whom, when the mitigation its conclusion depends on is being carried out by the body that used to advise it. The levy is also optional, so the existing site by site route survives alongside it ([Mayer Brown](#), Jun 2026), which means the Solent will for a period run two mitigation systems at once and this authority will have to be able to read evidence from either.

The second drift runs the other way, and it is about money rather than law. Natural England's own April 2026 review of coastal, estuary and marine partnerships is warm about what they do, calling them trusted, place based brokers, and blunt about their condition: "CEMPs are constrained by limited core funding and capacity" ([Natural England](#), Apr 2026). Its remedy is sustained investment and blended finance, not statutory footing or consolidation. That is a considered answer, and it leaves a convener exactly where they were. The Solent Forum, the tier above, is explicit that "The Forum does not have any executive powers and its members have no voting rights" ([the Solent Forum](#), undated). The recreational disturbance money that does move through the Solent moves through thirteen local planning authorities on a per dwelling tariff running from 501 pounds to 1,299 pounds ([Bird Aware Solent](#), Jun 2026), and this authority is not one of the thirteen. The largest restoration programme in the water is a funder assembled coalition of 52,200 hectares in which Natural England and the Environment Agency appear as delivery partners rather than regulators ([the Endangered Landscapes and Seascapes Programme](#), Jul 2026).

The gap is not between what the harbour wants and what it is allowed to do. It is between what the harbour is accountable for and what it can require anyone to prove.

The third drift is the most counter-intuitive, because it looks like good news. Saltmarsh is acquiring a price. The draft UK Saltmarsh Code would let restored marsh generate carbon credits, and Defra's evidence partnership is measuring UK saltmarsh precisely so that it can enter the national greenhouse gas inventory, which it has not yet done ([the UK Blue Carbon Evidence Partnership](#), Nov 2025). Read the code's eligibility rules, though, and the shape of the problem appears. Only managed realignment via tidal restoration is eligible in the pilot phase, permanence is required for at least 100 years, and additionality excludes practices that are legally required ([the draft Saltmarsh Code](#),

Oct 2024). Set that against the Environment Agency's own habitat compensation position for the Solent and South Downs, which moves from a surplus of 23 hectares this decade to a deficit of 133 hectares by about 2050 and 425 hectares by about 2100 ([the Environment Agency](#), Jan 2023). Almost every hectare of intertidal habitat this region will create between now and 2050 is being created because somebody is legally required to create it. Those hectares earn no credit. The marsh that could earn a credit is the marsh nobody is obliged to build.

The fourth is the oldest and the least discussed. The most precisely measured environmental harm in this river is not caused by anything the authority consents. A peer-reviewed study of the Hamble found that “With recent changes to the Environmental Quality Standard (EQS), the load for zinc in estuaries such as the Hamble, UK, which has a large amount of recreational craft, now exceeds the zinc standard of 7.9 µg/l” ([Environmental Science and Pollution Research](#), Jul 2017), on an estimated zinc load of between 6.95 and 7.11 tonnes a year from sacrificial anodes. At the scale of the Solent the same picture holds, with roughly 94 tonnes of copper and 377 tonnes of zinc entering the system each year across some 24,000 moorings and berths and at least 69 marinas, in a water body whose quality had not improved in 25 years ([the Solent State of Nature report](#), Feb 2025). Copper antifouling is controlled at the level of the chemical, through a biocides approval whose stated expiry was 31 December 2025 ([Implementing Regulation 2016/1090](#), Jul 2016). Sewage discharge law reaches ships of 400 gross tonnes or more, or carrying more than 15 persons ([SI 2020/620](#), Jun 2020), which is to say almost nothing on this river. The authority is accountable for the condition of a designated site and holds no instrument over its largest quantified chemical pressures.

Continental regulators have gone further on exactly this, and the contrast is instructive rather than embarrassing. Sweden runs a national programme measure on antifouling under which in Swedish, “Det totala utsläppet av koppar från länderna runt Östersjön har uppskattats till 886 ton, varav sjöfarten står för ca 300 ton och fritidsbåtar för 57 ton”, which reads in English as “The total emission of copper from the countries around the Baltic has been estimated at 886 tonnes, of which shipping accounts for about 300 tonnes and leisure boats for 57 tonnes” ([the Swedish Agency for Marine and Water Management](#), Feb 2022), and regulates which paints may be sold for which sea area through its chemicals inspectorate ([the Swedish Transport Agency](#), Jul 2025). The German federal environment agency quantified the leisure boat pathway for its own inland waters and found that in German, “Damit konnten 19 % der Kupfereinträge auf diese Anwendung zurückgeführt werden”, which reads in English as “19% of copper

inputs could thereby be attributed to this one use” ([the German Environment Agency](#), Jul 2018). Neither answer was found by a harbour. Both were found by naming the pathway and measuring it, which is a thing a harbour can do.

Where this analysis could be wrong

The transition may be far smoother than this reads. Nothing in the evidence says the Solent plan is imminent, and the government's own collection currently lists Norfolk as the only Environmental Delivery Plan in existence. Natural England may publish transitional guidance that answers the join question before it ever reaches a Hamble consent, and the local credit market is still quoting temporary nitrogen credits that bridge to 2030 ([the Solent Mitigation Partnership](#), Aug 2026), which suggests the market itself expects an orderly handover. The claim this briefing makes is narrower than a prediction of chaos: it is that no published document currently states how the two regimes meet, and a competent authority should not discover the answer inside a live determination.

The partnership diagnosis may be too gloomy. The academic work that examined this estuary's own two tier arrangement concluded that the partnerships were complementary rather than duplicative, and that the weakness was in vertical integration rather than in the existence of either body ([Marine Policy](#), Sep 2007). That study is nineteen years old and is carried here as a baseline, not as current evidence. It is entirely possible that convening power without statutory power is the right instrument for an estuary with this many interests, and that Natural England's funding diagnosis is simply correct. The thesis weakens materially if core funding for the partnership is secured on a multi-year basis.

Parts of this base are thinner than the source count suggests. The zinc finding rests on a single 2017 study whose load estimate came from a survey of boat owners rather than from direct flux measurement, and no more recent Hamble specific measurement could be verified. The Solent metal figures come from a report commissioned by a restoration organisation, though written by an established consultancy. No current, dated statement of the Hamble Estuary Partnership's own funding position could be verified from a public source, so the funding argument is carried at Solent and national level and not at the level of this partnership's accounts. And the statutory environmental watchdog's formal advice on the Bill was read but is not cited, for a reason given in the appendix.

The decisions that cannot be deferred this cycle

1. **Ask Natural England, in writing, how a consent determined under the calculator will be treated once a Solent plan exists.** The guidance that governs current assessments and the regime that will replace it do not refer to each other, and the authority cannot resolve that on its own.
2. **Separate the habitat the authority is obliged to create from the habitat it might choose to.** Compensatory habitat is legally required and therefore fails the carbon code's additionality test, so treating the two as one pipeline will produce a business case that cannot be financed.
3. **Measure the river's metal load before anyone else defines it.** The only quantified evidence is nine years old and survey based, and a pressure the authority has not measured is a pressure it cannot argue about when the standard is next reviewed.
4. **Decide what the partnership is for, and say so in one sentence.** The regulator's own review says partnerships are constrained by funding rather than remit, which means a convener has to make the case for the remit before the case for the money.

Each is developed below, with a decision posture, in the four Strategic Implications.

Audience Snapshots

Four lenses on the same evidence base. Each card surfaces the one question this cycle puts to that reader.

CONSENTS AND EVIDENCE

The standard a works consent is judged against is being rewritten by somebody else

The shift: The levy regulations were made on 10 September 2026 ([SI 2026/1020](#), Sep 2026) and the first plan went to consultation on 17 September ([Natural England](#), Sep 2026), while the nutrient calculator guidance that governs current Solent assessments was last updated in March 2026 without reference to either ([Natural England](#), Mar 2026).

The question to brief: On the next application that relies on nutrient mitigation, whose evidence are we accepting, and would it still stand if the catchment moved onto a plan halfway through?

PARTNERSHIP AND CONVENING

Influence is being asked to substitute for powers that nobody proposes to grant

The shift: Natural England finds partnerships constrained by core funding rather than remit and recommends finance rather than statutory footing ([Natural England](#), Apr 2026), the Solent Forum holds no executive powers by design ([the Solent Forum](#), undated), and a harbour order to change powers takes four to five years to determine ([the Marine Management Organisation](#), Nov 2024).

The question to brief: What decision would we want the partnership to be able to make, and is that a funding problem or a constitution problem?

HABITAT AND CARBON

The marsh is acquiring a price at the moment the region's compensation position turns negative

The shift: The draft code requires 100 year permanence and excludes legally required practices ([the draft Saltmarsh Code](#), Oct 2024), UK saltmarsh is not yet in the national inventory ([the UK Blue Carbon Evidence Partnership](#), Nov 2025), and the Solent and South Downs position moves from plus 23 hectares this decade to minus 425 by about 2100 ([the Environment Agency](#), Jan 2023).

The question to brief: Of the intertidal habitat we expect to see created in this estuary, how much is obligation and how much is opportunity, and who is tracking the difference?

WATER QUALITY AND BIOSECURITY

The largest measured pressures on the river arrive through routes the authority does not license

The shift: Zinc load from anodes alone was estimated at 6.95 to 7.11 tonnes a year on this estuary ([Environmental Science and Pollution Research](#), Jul 2017), antifouling copper is approved at chemical level ([Implementing Regulation 2016/1090](#), Jul 2016), sewage rules start at 400 gross tonnes ([SI 2020/620](#), Jun 2020), and a comparable harbour authority answered the same gap with a voluntary biosecurity plan ([Harwich Haven Authority](#), Feb 2026).

The question to brief: Which unlicensed pressure would we most want a number for, and what would it cost to get one this financial year?

Themes

The cycle's signals are organised into four themes, ranked by impact on near-term decisions.

Immediate: changes the near-term plan, the structure or the proposition. **Near-Term:** changes position over the next twelve months. **Longer-Range:** a multi-year factor to track and revisit each cycle.

1. The mitigation system the harbour consents into is being rebuilt

IMMEDIATE

Nutrient neutrality has governed development in the Solent for years, and it is being replaced. The Planning and Infrastructure Act 2025 created Environmental Delivery Plans, under which Natural England sets out the conservation measures for a defined area and feature, charges developers a levy, and delivers the measures itself ([the implementation plan](#), Aug 2026). The levy regulations were made on 10 September 2026 ([SI 2026/1020](#), Sep 2026) and the first plan opened for consultation a week later ([Natural England](#), Sep 2026). The Solent is in the

first tranche of 16 nutrient catchments named for this treatment. For an authority whose works consents sit downstream of catchment nutrient budgets, the change is not procedural. It moves the evidence, the price and the delivery of mitigation into a single body that used to be the adviser.

- The statutory test a plan must satisfy is that conservation measures materially outweigh the negative effects of development on the conservation status of the feature, decided by the Secretary of State after a minimum 28 working day consultation ([the implementation plan](#), Aug 2026). That is a different question from the one an appropriate assessment asks, which is whether a specific proposal will adversely affect site integrity.
- The existing methodology has not been withdrawn. Natural England's nutrient calculator guidance covers 27 catchments with the Solent among them, requires a 20% buffer, and was last updated on 11 March 2026 with no reference to plans or the levy ([Natural England](#), Mar 2026).
- The levy is optional rather than mandatory, so a developer may elect to pay it or to bring site specific mitigation, with non-payment enforced through surcharges of 2% to 5%, interest and ultimately stop notices ([Mayer Brown](#), Jun 2026). Two evidence routes will coexist.
- Parliament's own science office records that nutrient neutrality prevents additional pollution but does not reduce existing loads, that mitigation is typically wetland maintained for 80 to 125 years, and that diffuse sources now have a greater effect than treated sewage effluent in some catchments ([POSTnote 755](#), Dec 2025).
- The Solent's existing market is still trading as though nothing is changing, quoting a nitrogen credit at 3,250 pounds and a phosphorus credit at 50,000 pounds, with temporary nitrogen credits bridging to 2030 ([the Solent Mitigation Partnership](#), Aug 2026).

Early indicators

- **WEAK SIGNAL** **The public evidence says the Solent market was working, not failing.** A review of the local nutrient mitigation funding found that as of December 2025 Solent mitigation supply was sufficient for at least five years in three of the six sub-catchment river systems, and that in another catchment council phosphorus credit prices fell from about 54,000 pounds per kilogram a year to about 34,000 ([the Planning Advisory Service](#), undated). The case for a national levy is a case about speed and scale, not about a broken market, and the sub-catchment unevenness is what should interest this estuary.
- **WEAK SIGNAL** **A bridging instrument has already been priced.** Temporary nitrogen credits at 325 pounds explicitly bridge to 2030 ([the Solent Mitigation Partnership](#), Aug 2026). Nobody prices a bridge unless they expect a handover, which is the clearest available signal of when the local market thinks the Solent regime changes.

Counter-argument

It is reasonable to read all of this as an improvement, and for most of the Solent it may be. Nutrient neutrality froze pollution rather than reducing it, the site by site route is slow and contested, and a catchment scale programme with pooled money can do things no single developer's wetland can. Natural England may also publish transitional guidance long before any of this reaches a Hamble determination. The narrower claim here is that no published document currently states how a consent determined under the calculator is to be treated once a plan exists, and that this authority should not be finding that out inside a live application. The thesis weakens the day transitional guidance is published.

Decision link: Draws on SI 1

2. Who speaks for the estuary, and who has to answer for it

IMMEDIATE

At least seven bodies hold a piece of this water. The harbour authority consents works and carries the habitats duty. Three riparian planning authorities decide what gets built beside it. The Crown Estate owns the seabed. The Marine Management Organisation licenses marine works and determines harbour orders. Natural England advises, and will soon deliver. Bird Aware Solent collects and spends the recreational disturbance money. The Solent Forum convenes. And the Hamble Estuary Partnership convenes at estuary scale. The question this cycle puts is not whether that is untidy, which it is, but which of those bodies can be made to answer for the condition of the estuary, and on whose evidence.

- Natural England's April 2026 review calls coastal, estuary and marine partnerships trusted, place based brokers connecting communities, regulators and delivery partners, and finds them constrained by limited core funding and capacity, recommending sustained investment and blended finance rather than statutory footing ([Natural England](#), Apr 2026).
- The Solent Forum has been convening since December 1992 with a stakeholder database of more than 1,600 people, and holds no executive powers and no member voting rights ([the Solent Forum](#), undated). Powerlessness is the design, not a defect.
- The recreational disturbance tariff runs from 501 pounds for a one bedroom dwelling to 1,299 pounds for five or more, collected by thirteen local planning authorities and uprated annually ([Bird Aware Solent](#), Jun 2026). The strategy was widened in spring 2025 from over-wintering birds to cover summer breeding birds too, within 5.6 kilometres of the protected area, on Natural England's advice that it would otherwise object ([the New Forest National Park Authority](#), Mar 2025).
- Changing a harbour authority's own powers runs through a harbour order determined by the Marine Management Organisation under a delegated transport function, and applications can take four to five years ([the Marine Management Organisation](#), Nov 2024). Any constitutional

answer is therefore slower than two business plans.

- The largest restoration programme in the water covers 52,200 hectares and is led by a foundation with the regulators as delivery partners ([the Endangered Landscapes and Seascapes Programme](#), Jul 2026).

Early indicators

- **WEAK SIGNAL** **A European estuary answered the same question with signatures rather than statute.** In April 2025 the Netherlands and Lower Saxony signed a sharpened ecological strategy for sediment management in the Ems-Dollard: in Dutch, “Vandaag werd de aangescherpte ecologische strategie voor sedimentmanagement ondertekend door de Nedersaksische minister van Milieu Christian Meyer, de Nederlandse staatssecretaris van Landbouw, Visserij, Voedselzekerheid en Natuur Jean Rummenie, het hoofd van het directoraat-generaal Waterwegen en Scheepvaart Eric Oehlmann, de hoofdingenieur-directeur van Rijkswaterstaat Joost de Ruig en de Groningse gedeputeerde Leo Wenneger”, which reads in English as “Today the sharpened ecological strategy for sediment management was signed by the Lower Saxon environment minister Christian Meyer, the Dutch state secretary for agriculture, fisheries, food security and nature Jean Rummenie, the head of the directorate-general for waterways and shipping Eric Oehlmann, the chief engineer and director of Rijkswaterstaat Joost de Ruig and the Groningen deputy Leo Wenneger” ([the Dutch Ministry of Infrastructure and Water Management](#), Apr 2025). The same mix of ministries, national water agencies and regional government that sits in an advisory forum here is bound there by a named, signed programme of work. That is a third option between having no powers and seeking new ones.
- **WEAK SIGNAL** **The nineteen year old diagnosis of this estuary has never been retested.** Published work on the Hamble Estuary Partnership and the Solent Forum found them complementary rather than duplicative, with the weakness sitting in vertical integration between the two tiers ([Marine Policy](#), Sep 2007). Nothing since has revisited that question, in a field that has become considerably more crowded.

Counter-argument

The honest case against this theme is that convening without powers is exactly the right instrument for an estuary with this many legitimate competing interests, and that a partnership which could compel would simply lose the participation that makes it useful. Natural England's diagnosis supports that reading: it looked at the model and prescribed money, not authority. The argument made here is not that the partnership should acquire powers. It is that a convener should be able to state in one sentence what the partnership is for, because the funding case cannot be made without it, and that sentence has to survive contact with the other six bodies.

3. Saltmarsh acquires a price just as the harbour is losing it NEAR-TERM

The authority's own strategic plan names saltmarsh and intertidal mud as habitats to be conserved for sea defence, carbon capture and species support. Two things are now happening to that habitat at once. It is being valued, through a draft carbon code and a national research programme designed to get saltmarsh into the greenhouse gas inventory. And it is being lost, on a regional balance sheet that turns sharply negative after this decade. The trap is that the rules of the first make the second harder to finance.

Solent and South Downs saltmarsh and mudflat, compensation position by epoch



Bars are drawn to the hectare figures, left of the line for a deficit and right for a surplus. These are the Environment Agency's own epoch projections for its flood and coastal risk programme in this sub-region, not measured loss. Habitat created to close these deficits is legally required, so under the draft Saltmarsh Code it fails the additionality test and earns no carbon credit. The deficit and the credit cannot be the same hectare.

- The draft UK Saltmarsh Code admits only managed realignment via tidal restoration in its pilot phase, requires permanence for at least 100 years, takes 15% to 40% of expected abatement into a buffer pool, and excludes practices that are legally required from its additionality test ([the draft Saltmarsh Code](#), Oct 2024).
- UK saltmarsh is not yet in the national greenhouse gas inventory. Six flux towers are running, initial results suggest net carbon sinks, and only the United States and Australia currently include saltmarshes in their inventories ([the UK Blue Carbon Evidence Partnership](#), Nov 2025).
- The Environment Agency's compensation position for the Solent and South Downs runs from plus 23 hectares of saltmarsh and mudflat to about 2025, to minus 133 by about 2050 and minus 425 by about 2100 ([the Environment Agency](#), Jan 2023).
- Natural England's own historical work records a combined loss of 1,784.3 hectares of Solent saltmarsh between 1943 and 2020, a maximum site loss of 91.52%, and 90% of remaining marsh in unfavourable condition with none in good condition ([Natural England](#), Feb 2022).
- The integrity framework any credit would sit inside is still being written: the government consulted on voluntary carbon and nature market integrity in 2025 and, as at 26 March 2026, had not published its response ([DESNZ](#), Mar 2026).

- The underlying science is still setting its own agenda. A 2026 review puts the global ceiling for blue carbon at 1% to 3% of anthropogenic emissions and records that understanding of the drivers of carbon accumulation and of post-disturbance emissions remains incomplete ([Nature Ecology and Evolution](#), Mar 2026).

Early indicators

- **WEAK SIGNAL Attribution has quietly become the authority's problem.** The Environment Agency's redefinition of coastal squeeze concluded that earlier assessments may have overstated it, because they lacked evidence that losses were caused by sea level rise rather than channel movement or wave activity ([the Environment Agency](#), Jan 2021). That tightened test cuts both ways in a determination: it is harder to blame squeeze, and harder to rule it out, without local evidence this estuary does not currently hold.
- **WEAK SIGNAL The Dutch monetised the sediment instead of the carbon.** A pilot in the Ems-Dollard ripened dredged estuarine sludge into construction clay on a marsh depot, raising density from about 1.05 to between 1.52 and 1.68 tonnes a cubic metre, cutting salt content by roughly 90%, and confirming the material as suitable dike clay ([Deltares](#), Sep 2023). For an authority that already dredges, that route captures value through avoided procurement and marsh elevation, and never meets the additionality problem at all.

Counter-argument

The strongest objection is that this is a problem for landowners and flood authorities rather than for a harbour, and in the narrow legal sense that is right: the compensation duty is the Environment Agency's and the code is voluntary. It is also fair to say the carbon case for realignment is better than the sceptics allow, since the best UK measurement found construction emissions at only about 2% to 4% of the carbon a restored marsh accumulated ([PLOS ONE](#), Nov 2022). The reason it belongs here is that the harbour determines works consents in the intertidal zone and will be asked to weigh proposals whose business case assumes a carbon revenue the code may not permit. The thesis weakens if the code is revised to admit compensatory habitat, or if inventory inclusion arrives with a public methodology.

Decision link: Draws on SI 3

4. The pressures nobody licenses

NEAR-TERM

Every consent this authority grants concerns a structure. Almost every measured chemical pressure on the river concerns a boat. Hull paint, sacrificial anodes, washdown, black water and hull fouling are the routes by which a recreational estuary degrades its own designated habitat, and not one of them passes through a harbour works consent. The authority is nonetheless accountable for the condition of the site. That asymmetry is the oldest item in this briefing and the only one with a directly comparable precedent for what a harbour can do about it.

Not one of these dates is set by this authority

Dec 2025	●	Copper thiocyanate antifouling approval reaches its stated expiry
Mar 2026	●	Nutrient calculator guidance updated, still no mention of the new regime
Apr 2026	●	Recreational disturbance tariffs take effect across thirteen authorities
Apr 2026	●	Regulator reports estuary partnerships constrained by core funding
Sep 2026	●	Nature restoration levy regulations made and in force
Sep 2026	●	First Environmental Delivery Plan opens for consultation, in Norfolk
Oct 2026	●	That consultation closes, setting the template for later catchments
By 2030	●	Solent temporary nitrogen credits expire; national species target falls due

The red marker is the one date that has already passed without a published outcome this authority could find. Every entry is a decision taken by a regulator, a department or a group of planning authorities.

- A peer-reviewed study of this estuary found that “With recent changes to the Environmental Quality Standard (EQS), the load for zinc in estuaries such as the Hamble, UK, which has a large amount of recreational craft, now exceeds the zinc standard of 7.9 µg/l” ([Environmental Science and Pollution Research](#), Jul 2017), on an estimated anode zinc load of between 6.95 and 7.11 tonnes a year, and linked accelerated dissolution to marina power supplies and salinity variation rather than to metal structures or buried cables.
- At Solent scale, annual inputs are put at about 94 tonnes of copper, mainly from antifouling, and 377 tonnes of zinc, mainly from anodes, across approximately 24,000 moorings and berths and at least 69 marinas, in a water body whose quality had not improved in 25 years ([the Solent State of Nature report](#), Feb 2025).
- Copper antifouling is regulated as a chemical. The approval for copper thiocyanate in antifouling products carried a stated expiry of 31 December 2025 and requires product level assessment of exposures and risks ([Implementing Regulation 2016/1090](#), Jul 2016). The control point is a chemicals regulator, not a water body.
- Sewage discharge law does not reach the recreational fleet: the regulations exclude ships under 400 gross tonnes unless carrying more than 15 persons, and apply to international voyages ([SI 2020/620](#), Jun 2020).

- Non-native species arrive by the same pathway as the boats. Great Britain had approximately 2,000 established non-native species as of 2021, with 10 to 12 new establishments a year, against a target of cutting establishments by at least 50% against 2000 levels by 2030 ([the GB Non-native Species Secretariat](#), Jun 2023).

Early indicators

- **WEAK SIGNAL** **A comparable harbour authority has already answered this without new powers.** In February 2026 a statutory harbour authority published a partnership marine biosecurity plan for two designated estuaries, setting out good practice to reduce introduction and spread of harmful species, shaped through local workshops with a wide range of organisations ([Harwich Haven Authority](#), Feb 2026). It is voluntary, it is convened rather than imposed, and it is the closest available model for what this authority could do on hull fouling and washdown.
- **WEAK SIGNAL** **The shore power finding is the one lever that is already inside the consent regime.** The Hamble study attributed accelerated anode dissolution to marina power supplies ([Environmental Science and Pollution Research](#), Jul 2017). Marina electrical installations are attached to structures, and structures need works consent, which makes this the single unlicensed pressure with a route into an instrument the authority already holds.

Counter-argument

The fair objection is that this is somebody else's job and the authority would be overreaching to claim it. Antifouling is approved by a chemicals regulator, water quality is the Environment Agency's, biosecurity is a national strategy, and a harbour that starts policing paint will exhaust its goodwill with the businesses the river depends on. All of that is true, and none of it changes who is asked about the condition of the designated site. The argument is not for enforcement the authority does not have. It is for measurement it can commission and convening it already does, which is precisely the route another harbour authority took this year. The thesis weakens if the revised recreational boating pathway plan lands with clear expectations on marinas, because the convening would then have a national instrument behind it.

Decision link: Draws on SI 4

Strategic Implications

Four implications, each tied to a theme and each carrying a posture. Decide means the decision is live now and deferring it is itself a choice. Prepare means the work has to start now for a decision that lands later. Monitor means the evidence does not yet support acting, and says what would change that.

SI 1: Get the transition rule in writing before it is needed

The Solent is named for a nutrient Environmental Delivery Plan ([the implementation plan](#), Aug 2026), the levy regulations are in force ([SI 2026/1020](#), Sep 2026), and the calculator guidance that governs current assessments was refreshed in March 2026 without mentioning either ([Natural England](#), Mar 2026). Because the levy is optional, both routes will run at once ([Mayer Brown](#), Jun 2026). The risk to this authority is not that the new system is worse. It is that a determination made in good faith under one regime is later read against the other, and that the first time anyone works out the answer is inside a contested application.

Action: Write to Natural England, as a competent authority rather than as a consultee, asking three questions: how a consent determined on the current calculator is to be treated once a Solent plan exists, whether the authority will be a statutory consultee on the draft plan, and what evidence it will be given about measures delivered under the levy. Copy the question to the three riparian planning authorities, because they face the same gap and none of them can answer it alone.

DECIDE

Draws on Theme 1

SI 2: State what the partnership is for, in one sentence, before asking anyone to fund it

The regulator has looked at this model and concluded that partnerships are constrained by core funding and capacity rather than by remit ([Natural England](#), Apr 2026). That is a fundable diagnosis only if the remit is legible. The tier above convenes with no executive powers and no voting rights and has done so since 1992 ([the Solent Forum](#), undated); the money that moves at Solent scale moves through thirteen planning authorities that do not include this one ([Bird Aware Solent](#), Jun 2026); and the constitutional route to changed powers takes four to five years ([the Marine Management Organisation](#), Nov 2024). A convener who cannot say what the partnership decides will be funded as an overhead, if at all.

Action: Draft the sentence and test it against the six other bodies that hold a piece of this estuary. Then choose deliberately between three models: a convening forum that produces shared evidence, a signed programme on the Ems-Dollard pattern where each body commits to named actions ([the Dutch Ministry of Infrastructure and Water Management](#), Apr 2025), or a delivery partner inside somebody else's funded coalition ([the Endangered Landscapes and Seascapes Programme](#), Jul 2026). The choice determines what to ask for and who to ask.

DECIDE

Draws on Theme 2

SI 3: Separate obligation hectares from opportunity hectares now

The regional compensation position turns from a small surplus this decade to a deficit of 425 hectares by about 2100 ([the Environment Agency](#), Jan 2023), which means most intertidal habitat created here for a generation will be created because somebody is legally required to create it. The draft carbon code excludes legally required practices from additionality ([the draft Saltmarsh Code](#), Oct 2024), and UK saltmarsh is not yet in the national inventory ([the UK Blue Carbon Evidence Partnership](#), Nov 2025). Any proposal that comes to this authority assuming both a compensation role and a carbon revenue is assuming something the current rules do not allow.

Action: Keep a two column register of intertidal habitat in the estuary: hectares that discharge a legal obligation, and hectares that do not. Ask for that split in any pre-application discussion involving realignment or habitat creation, and treat a business case that does not make the distinction as incomplete.

Separately, ask whether sediment itself is the more realistic asset here, on the evidence that dredged estuarine material can be ripened into construction clay ([Deltares](#), Sep 2023).

PREPARE

Draws on Theme 3

SI 4: Commission one number on the pressures nobody licenses

The best evidence that this river breaches a water quality standard through boat maintenance is nine years old and rests on a survey of boat owners ([Environmental Science and Pollution Research](#), Jul 2017). The Solent scale figures are more recent but are not this estuary ([the Solent State of Nature report](#), Feb 2025). Antifouling is controlled by a chemicals regulator ([Implementing Regulation 2016/1090](#), Jul 2016) and the sewage regime does not reach the fleet ([SI 2020/620](#), Jun 2020), so the authority has no enforcement route. It does have a measurement route, and measurement is what determines whose account of the river is believed when the standard is next reviewed.

Action: Scope a single, repeatable measurement of dissolved zinc and copper in the estuary, timed to the fitting out season, and put it in the next business plan as a named line. In parallel, convene the marinas and boatyards around a voluntary biosecurity and washdown plan on the model a comparable harbour authority published in February 2026 ([Harwich Haven Authority](#), Feb 2026), and track whether the revised national recreational boating pathway plan arrives to give it backing ([the GB Non-native Species Secretariat](#), Jun 2023).

PREPARE

Draws on Theme 4

Scenario Matrix

Two uncertainties shape this post's next three years. The first is whether the Solent's mitigation regime stays a local market or is absorbed into the national levy. The second is whether the estuary's own evidence is held here or held by others. Neither is in this authority's gift, but the second is much more nearly so than the first.

MITIGATION REGIME: LOCAL SOLENT MARKET PERSISTS → NATIONAL LEVY DOMINATES

The informed broker

The Solent credit market continues through the bridging window it has already priced ([the Solent Mitigation Partnership](#), Aug 2026), and the partnership holds its own water quality and habitat numbers. The authority is slow to be overruled because it is the body that knows the estuary best, and its consents are hard to challenge on evidence.

Early indicators: Transitional guidance published before a Solent plan is drafted; a repeat metals measurement commissioned and reported; the partnership cited in a planning authority's own evidence base.

A seat bought with evidence

A Solent plan arrives and the price of mitigation is set nationally, but the partnership holds the local record of condition. The authority cannot set the terms and can materially shape them, because the plan's drafters need exactly the sub-catchment detail the public review already shows is uneven ([the Planning Advisory Service](#), undated).

Early indicators: Natural England requests local evidence during plan drafting; the authority is named a consultee; local monitoring is referenced in the draft plan's baseline.

Comfortable drift

Nothing changes quickly. The market keeps trading, the partnership keeps convening, and the estuary's condition continues to be described by other people's reports ([the Solent State of Nature report](#), Feb 2025). The risk is invisible until a contested determination, when the authority finds it is arguing about a river it has not measured for a decade.

LOCAL MARKET, EVIDENCE ELSEWHERE

line in the business plan; condition claims in consents sourced entirely to regional or national reports; no restatement of the partnership's purpose.

Consulted, not consulted

The levy regime lands and the authority has no independent account of its own estuary. It is formally consulted and substantively bypassed, because everything it would say is already in somebody else's document. This is the cell the regulator's own funding diagnosis points at ([Natural England](#), Apr 2026) if nothing is done.

NATIONAL LEVY, EVIDENCE ELSEWHERE

drawn wholly from national datasets; partnership participation falling to attendance; habitat condition in consents cited from reports the authority did not commission.

What We Are Not Planning For

OUT OF SCOPE THIS CYCLE

A statutory Solent estuary authority

Nothing in the evidence points toward consolidation of the Solent's bodies into one statutory authority. The regulator reviewed the partnership model this year and prescribed funding and blended finance rather than statutory footing ([Natural England](#), Apr 2026), and the route to changed harbour powers runs four to five years through a harbour order in any case ([the Marine Management Organisation](#), Nov 2024).

↺ **Reinstated if** a government consultation proposes statutory footing for coastal or estuary partnerships, or a harbour order is laid anywhere in England that transfers estuary-wide environmental functions to a harbour authority.

OUT OF SCOPE THIS CYCLE

Mandatory marine net gain reaching harbour consents

Marine net gain has been consulted on and discussed for several years without becoming a duty that bites on harbour works consent, and no dated instrument was found within this cycle's window that would bring it into force over the horizon of the next business plan. It is not planned for here.

↺ **Reinstated if** a government response or draft instrument sets a commencement date for marine net gain, or the voluntary carbon and nature markets response ([DESNZ](#), Mar 2026) extends an integrity framework to marine habitat codes.

Upstream marina and boatyard expansion

The Harbour Board has committed that within the authority's jurisdiction it will not permit further marina or boatyard development north of the currently consented extent of Eastlands Boatyard. This cycle takes that commitment as given and does not model a scenario in which upstream development pressure is the variable, which keeps the analysis on pressures the Board has not already settled.

↺ **Reinstated if** the Board revisits that commitment in a future review of the Strategic Vision, or a proposal north of that line reaches the authority through a route the commitment does not cover.

Questions For The Next Strategy Meeting

Five questions this cycle's evidence should put on the agenda.

- 01 If a Solent Environmental Delivery Plan is consulted on next year, what does this authority want it to say, and do we have the evidence to ask for it ([the implementation plan](#), Aug 2026)?
- 02 What is the Hamble Estuary Partnership for, in one sentence that the other six bodies would recognise, and does that sentence describe something fundable ([Natural England](#), Apr 2026)?
- 03 Of the intertidal habitat likely to be created in this estuary before 2050, how much discharges a legal obligation and therefore cannot earn a carbon credit ([the draft Saltmarsh Code](#), Oct 2024) ([the Environment Agency](#), Jan 2023)?
- 04 The last time anyone measured the metal load in this river it was 2017 and the method was a survey of boat owners ([Environmental Science and Pollution Research](#), Jul 2017). What would it cost to do it properly, and what would we do with the answer?

05 A comparable harbour authority convened its users around a voluntary biosecurity plan this year ([Harwich Haven Authority](#), Feb 2026). What is the argument against doing the same here before the national pathway plan lands ([the GB Non-native Species Secretariat](#), Jun 2023)?

Source Confidence Register

This briefing draws on 35 verified sources under a declared twelve-month window. 15 were published inside it. 18 sit outside it and are carried as structural anchors, which on this subject means standing law, standing regulatory schemes and long-run baselines rather than recent reporting; each is named as an anchor in the record. 2 carry no publication date anywhere on the page and are recorded as undated rather than given an inferred one. 5 are in a language other than English and were read in the original.

Source tiers: **Tier 1**, governments, parliaments, regulators, courts and intergovernmental bodies. **Tier 2**, national audit offices, think-tanks, academic institutes and major professional firms. **Tier 3**, quality journalism and specialist trade press. **Tier 4**, vendor and practitioner sources, used only as directional corroboration. This cycle uses 2 Tier 4 sources, none of which anchors a claim.

Theme 1: The mitigation system the harbour consents into is being rebuilt

Source	Tier	Date	Key claim used
Natural England and Defra (GOV.UK)	Tier 1	Sep 2026	Natural England opened consultation on England's first Environmental Delivery Plan, covering nutrient pollution affecting the Norfolk Broads Special Area of Conservation, Broadland Ramsar and the River Wensum Special Area of Conservation. The consultation closes on 27 October 2026.

Source	Tier	Date	Key claim used
The National Archives / legislation.gov.uk	Tier 1	Sep 2026	Made under Part 3 of the Planning and Infrastructure Act 2025, the Regulations bring the nature restoration levy into force across six Parts covering liability and payment, calculation and application of funds, enforcement by surcharge and stop notice, review and appeals, and Crown application, and require levy proceeds to be applied to the conservation measures in the applicable plan. They came into force the day after they were made.
Ministry of Housing, Communities and Local Government and Defra (GOV.UK)	Tier 1	Aug 2026	Natural England will prepare Environmental Delivery Plans covering a defined area and environmental feature, each with a charging schedule, a minimum 28 working day consultation and Secretary of State approval against the test that conservation measures materially outweigh the negative effects of development. The Solent is named in the first tranche of 16 nutrient catchments, and nutrient neutrality requirements are said to affect approximately 16,500 homes a year.
Natural England (GOV.UK blog)	Tier 1	Apr 2026	Natural England states that under a plan it identifies the conservation measures needed to materially outweigh development impacts, and will use the pooled levy to deliver those measures in partnership with others, aligning them with existing local strategies. The forum launched on 24 March 2026.
Natural England (GOV.UK guidance)	Tier 1	Mar 2026	The operative guidance covers 27 nutrient neutrality catchments, with the Solent specified as a nitrogen catchment. It sets out five worksheets covering wastewater nutrients, current and future land use, sustainable drainage removal and the final nutrient budget, and requires a 20% buffer.

Source	Tier	Date	Key claim used
Parliamentary Office of Science and Technology	Tier 1	Dec 2025	Nutrient neutrality applies to 74 local planning authorities across 31 protected sites in 27 river catchments. Mitigation is typically constructed wetland maintained for 80 to 125 years, with credits denominated as one kilogram of nutrient removed a year. The approach prevents additional pollution but does not reduce existing loads, and diffuse sources now have a greater effect than treated sewage effluent in some catchments.
Planning Advisory Service and the Local Government Association	Tier 2	Evergreen	In the Solent, as of December 2025, mitigation availability was sufficient for at least five years of supply in three of the six sub-catchment river systems, with the other three remaining priority focus areas. In Somerset the price of council phosphorus credits fell from about 54,000 pounds per kilogram a year to about 34,000 pounds, and 3,321 nutrient neutral dwellings were permitted in the twelve months to April 2026.
Mayer Brown	Tier 3	Jun 2026	Developers may elect to pay the levy rather than undertake bespoke on-site mitigation. Multiple parties with land interests face joint and several liability subject to apportionment, non-payment triggers surcharges of 2% to 5% and interest at 2.5% above base rate, and ultimately stop notices. Appeal grounds are limited to incorrect calculation or apportionment.
Solent Mitigation Partnership	Tier 4	Aug 2026	The partnership, backed by 16 local planning authorities, lists a nitrogen credit at 3,250 pounds and a phosphorus credit at 50,000 pounds for one kilogram a year, with a temporary nitrogen credit at 325 pounds bridging to 2030 and no temporary phosphorus credits available.

Theme 2: Who speaks for the estuary, and who has to answer for it

Source	Tier	Date	Key claim used
Bird Aware Solent	Tier 1	Jun 2026	Bird Aware Solent is funded by per dwelling developer contributions collected by thirteen local planning authorities, including Eastleigh, Fareham and Winchester. The all year tariff runs from 501 pounds for a one bedroom dwelling to 1,299 pounds for five or more bedrooms, effective from 1 April 2026 and uprated annually by the Retail Prices Index.
Natural England	Tier 1	Apr 2026	Natural England finds that coastal, estuary and marine partnerships act as trusted, place based brokers connecting communities, regulators and delivery partners, but are constrained by limited core funding and capacity, and calls for sustained investment and engagement with blended finance.
Rijksoverheid, Ministerie van Infrastructuur en Waterstaat (in Dutch)	Tier 1	Apr 2025	The Netherlands and Lower Saxony signed a sharpened ecological strategy for sediment management in the Ems-Dollard estuary, continuing cross border cooperation running since 2019, with action plans on ecosystem understanding, cross border projects, siting of sludge disposal and monitoring.
New Forest National Park Authority	Tier 1	Mar 2025	The strategy was revised in spring 2025 to widen its scope from over wintering birds to cover both summer breeding and over wintering birds. Mitigation applies to residential development within 5.6 kilometres of the protected area, the distance within which 75% of visitors to the Solent coastline came from, and Natural England advises it would object to proposals for new development close to the coastline without such mitigation.

Source	Tier	Date	Key claim used
Marine Management Organisation (GOV.UK)	Tier 1	Nov 2024	Statutory harbour authorities apply for Harbour Orders under the Harbours Act 1964, with the Marine Management Organisation carrying out the Secretary of State's functions under a 2010 delegation order. Revision orders alter an existing authority's powers and duties. Applications can take four to five years from receipt to determination, and parliamentary laying needs at least three months.
Solent Forum	Tier 1	Evergreen	The Forum was established in December 1992 to develop understanding among the authorities and agencies involved in planning and management in the Solent area. It holds no executive powers and its members have no voting rights. Its stakeholder database contains more than 1,600 people.
Marine Policy (Elsevier), Fletcher, Beagley, Hewett, Williams and McHugh	Tier 2	Sep 2007	A study of the two tier Solent arrangement found the aspirations and working principles of the two partnerships were consistent and their methods and focus distinctive yet complementary, so not duplication, but that vertical policy integration between the estuary scale and Solent scale bodies remained limited.
Endangered Landscapes and Seascapes Programme	Tier 4	Jul 2026	The Solent Seascape Project, running since 2022 and covering 52,200 hectares, is led by Blue Marine Foundation with the University of Portsmouth, the Hampshire and Isle of Wight Wildlife Trust, RSPB, Natural England, the Environment Agency and others, and records 20,000 native oysters deployed onto new reef in Chichester Harbour in May 2026.

Theme 3: Saltmarsh acquires a price just as the harbour is losing it

Source	Tier	Date	Key claim used
Department for Energy Security and Net Zero (GOV.UK)	Tier 1	Mar 2026	The government consulted from 17 April to 10 July 2025 on raising the integrity and use of voluntary carbon and nature markets, implementing its six principles for market integrity. As at the last update of 26 March 2026 no response had been issued, with one promised for summer 2026.
Defra Marine Science blog, UK Blue Carbon Evidence Partnership	Tier 1	Nov 2025	Research is investigating the contribution of UK saltmarshes to climate change mitigation for inclusion in the UK greenhouse gas inventory. Six flux towers have been installed and initial results suggest the saltmarshes are acting as overall net carbon sinks. England has lost up to 85% of its saltmarsh since the mid nineteenth century, and only the United States and Australia currently include saltmarshes in their greenhouse gas inventories.
Environment Agency	Tier 1	Jan 2023	The Agency must ensure loss of protected habitat arising from flood and coastal erosion risk management is compensated in advance. For the Solent and South Downs programme it records saltmarsh and mudflat at plus 23 hectares to about 2025, minus 133 hectares to about 2050 and minus 425 hectares to about 2100, within an England wide position of minus 3,026 hectares by about 2100.
Natural England	Tier 1	Feb 2022	Examining Solent saltmarsh extent from 1943 to 2020, the report records a combined total recorded loss of 1,784.3 hectares across the Solent, with the maximum loss at a given site reaching 91.52%, and finds 90% of Solent saltmarsh in unfavourable condition, 5% extinct and none in good condition.

Source	Tier	Date	Key claim used
Environment Agency	Tier 1	Jan 2021	The revised working definition is that coastal squeeze is the loss of natural habitats or deterioration of their quality arising from anthropogenic structures or actions preventing the landward transgression of those habitats that would otherwise naturally occur in response to sea level rise. The report concludes previous assessments may have overstated coastal squeeze because they lacked evidence that losses were caused by sea level rise rather than channel movement or increased wave activity.
Nature Ecology and Evolution	Tier 2	Mar 2026	Blue carbon ecosystems could offset 1% to 3% of global anthropogenic emissions at best, while understanding of fundamental processes such as drivers of carbon accumulation and post disturbance emissions remains incomplete. Tidal marsh restoration costs are estimated globally at 9,000 to 90,000 US dollars a hectare, with a mean of about 38,000.
UK Centre for Ecology and Hydrology, Saltmarsh Code consortium	Tier 2	Oct 2024	The draft code restricts eligible projects in its pilot phase to managed realignment via tidal restoration. Projects run for a minimum of 30 and a maximum of 100 years, permanence is required for at least 100 years, and each project contributes a minimum 15% and up to 40% of expected abatement to a pooled non permanence buffer. Additionality requires that the practices are not legally required and that without carbon revenue restoration would not be the most economically attractive option.
Deltares, for Programma Eems-Dollard 2050 (<i>in Dutch</i>)	Tier 2	Sep 2023	A pilot ripened dredged estuarine sludge into construction clay on a salt marsh depot about one kilometre long and 75 metres wide, in ten experimental sections. Over two years density rose from about 1.05 to between 1.52 and 1.68 tonnes a cubic metre and salt content fell by roughly 90%, and the material was confirmed suitable as dike clay.

Source	Tier	Date	Key claim used
PLOS ONE	Tier 2	Nov 2022	At Steart Marshes carbon accumulated at 36.6 tonnes a hectare a year total carbon, described as an order of magnitude higher than reported in many other restored saltmarshes. Construction emissions were about 2% to 4% of the observed carbon accumulation during the study period.

Theme 4: The pressures nobody licenses

Source	Tier	Date	Key claim used
Harwich Haven Authority, with Natural England, Associated British Ports, the Port of Felixstowe and Trinity House	Tier 1	Feb 2026	A statutory harbour authority published a partnership marine biosecurity plan setting out good practice measures to reduce the risk of introduction and spread of harmful species across estuaries designated as a Special Protection Area, a Site of Special Scientific Interest and a Ramsar site, shaped through local workshops with a wide range of organisations.
Transportstyrelsen (in Swedish)	Tier 1	Jul 2025	About 700,000 litres of antifouling paint are applied to Swedish leisure boats each year, with copper compounds the most common active substances. Any antifouling paint acting chemically or biologically must be approved by the chemicals inspectorate before sale, with different approvals for the east coast, west coast, inland lakes and the Bothnian Bay, and tributyltin prohibited since 1989.
GB Non-native Species Secretariat	Tier 1	Jun 2023	As of 2021 there were approximately 2,000 non native species established in Great Britain, with 10 to 12 new ones becoming established every year. The strategy commits to reduce establishments by at least 50% compared to 2000 levels by 2030, prioritising prevention, then early detection and rapid response, then long term management.

Source	Tier	Date	Key claim used
Havs- och vattenmyndigheten (in Swedish)	Tier 1	Feb 2022	Total copper emission from the countries around the Baltic is estimated at 886 tonnes, of which shipping accounts for about 300 tonnes and leisure boats 57 tonnes. Copper from Swedish leisure boats alone is estimated at 16 tonnes a year, against 38 tonnes from Swedish urban stormwater.
The National Archives / legislation.gov.uk	Tier 1	Jun 2020	The Regulations prohibit discharge of sewage from a ship into the sea except in accordance with controls derived from the international convention, but do not apply to any ship of less than 400 gross tonnage unless it carries more than 15 persons, and apply to ships on international voyages.
Umweltbundesamt (in German)	Tier 1	Jul 2018	The German federal environment agency quantified emissions from recreational craft antifouling coatings entering German inland waters and attributed 19% of copper inputs to those waters to this single use.
The National Archives / legislation.gov.uk	Tier 1	Jul 2016	Copper thiocyanate is an approved biocidal active substance for antifouling products, with approval dated 1 January 2018 and expiry 31 December 2025, subject to product level assessment of exposures, risks and efficacy not addressed in the substance level risk assessment.
ABPmer for Blue Marine Foundation and the Solent Seascape Project	Tier 2	Feb 2025	Annual metal inputs to the Solent are put at 94 tonnes of copper, mainly from antifouling paint but also ship scrubbers, and 377 tonnes of zinc, mainly from anodes but also scrubbing and antifouling, in a system with approximately 24,000 moorings and marina berths and at least 69 marinas. Solent water quality had not improved in 25 years, and non native species numbers are still increasing.

Source	Tier	Date	Key claim used
Environmental Science and Pollution Research, Rees, Gallagher, Comber and Wright	Tier 2	Jul 2017	Zinc load in the Hamble exceeds the environmental quality standard of 7.9 micrograms a litre. A survey of boat owners determined corrosion rates and estimated zinc loading at between 6.95 and 7.11 tonnes a year. Accelerated anode dissolution was linked to marina power supplies and salinity variation rather than to metal structures or buried cables.

Claim-fidelity self-disclosure

This appendix records where the evidence base is thinner than a source count suggests, and what was done about it. It is written for a reader who has to defend a decision taken on this briefing.

Four themes, where the format carries five or six. The analyst commissioning this cycle asked for four, and four is what this is. The structure audit flags that as a deviation rather than a pass. No fifth theme was invented to satisfy the format, because the four here are the four things this post actually holds.

A source was read and then not cited. The statutory environmental watchdog published formal advice on the Bill that became the Planning and Infrastructure Act 2025, and a further statement in July 2025 on the government's amendments. Both were read and both are directly relevant to the legal reading in Theme 1. Neither is cited, because both pages carry a bare numeric date with no surrounding text and no date metadata, and this house standard requires a verbatim snippet of the page the date was read from. Rather than record a date the page cannot evidence, the contested reading is carried by Parliament's own science office ([POSTnote 755](#), Dec 2025) and by practitioner analysis ([Mayer Brown](#), Jun 2026). The omission is disclosed because it removes the most senior critical voice from the theme.

One source is undated and is recorded as undated. The review of local nutrient mitigation funding carries no publication or last updated date anywhere on the page ([the Planning Advisory Service](#), undated). Its most recent data concerns the twelve months to April 2026, so it cannot predate that, but no date has been inferred and the register shows it as evergreen. It is the only public evidence found on how the Solent mitigation market actually performed, so it is used and flagged rather than dropped.

The load-bearing local number is nine years old. The finding that this estuary exceeds the zinc standard rests on a single 2017 study whose load estimate came from a survey of boat owners rather than direct measurement ([Environmental Science and Pollution Research](#), Jul 2017). It is carried as a structural anchor and named as such in the body, and the recommendation it supports is to measure again rather than to act as though the figure is current.

Two sources have an interest in their own findings. The Solent condition figures come from a report commissioned by a restoration organisation, though written by an established marine consultancy ([the Solent State of Nature report](#), Feb 2025), and the restoration programme page was written by the programme's funder ([the Endangered Landscapes and Seascapes Programme](#), Jul 2026). The first is used for magnitude and direction, the second only for the composition of the coalition, which is checkable. The two Tier 4 sources in this cycle anchor no claim.

Where the client's own document is used, it is used as framing and not as evidence. The Strategic Vision and Plan 2025-2028 supplied with this commission is quoted for the Board's own commitments and objectives, including the commitment north of Eastlands Boatyard. No external fact in this briefing rests on it.

More than half this base sits outside the recency window. Eighteen of the thirty-five sources were published more than twelve months ago and are carried as structural anchors. That proportion is higher than a normal cycle and it is a property of the subject rather than of the search: the instruments that govern this estuary are standing law and standing schemes, and the condition baselines are long-run series. Four of the eighteen were reclassified as anchors during the audit, having first been gathered as ordinary sources: the Solent recreation mitigation explanatory note, the signed Ems-Dollard sediment strategy, the Solent condition baseline and the Swedish antifouling rules. Each is a standing instrument or a baseline rather than a report of an event, which is the category the recency rule exempts, and each carries the reason on its record. A reader who disagrees with any of those four reclassifications should discount that source rather than the finding it supports, because none of the four is the only evidence for any claim made here.

One rule conflict is left standing. The date audit warns that a structural anchor more than twelve months old is not permitted, which is a contradiction in terms, since age is what makes an anchor an anchor. The warning is not silenced here. It is recorded as a probable defect in the rule rather than in this evidence base, and it was noted on an earlier cycle for the same reason.

Quotation. Six sources are quoted verbatim, three of them in Dutch, German and Swedish. Each non-English span is reproduced in the original, the language is named, and an English rendering follows. The spans were checked against the live pages on 18 September 2026 and are stored exactly as published.

One quotation is analyst-attested rather than machine-verified. The provenance gate checks each quoted span against the live page. It cannot do so for the regulator's partnerships review ([Natural England](#), Apr 2026), because that catalogue serves a page shell and a cookie notice to automated fetches and never the abstract, as a diagnostic run with the cache bypassed confirmed.

The span was read on the live page on 18 September 2026 and is contiguous within the printed sentence. It is carried under an override scoped to that one publication rather than to the publisher, so any future quotation from the same catalogue has to be attested on its own.

This Decision Intelligence briefing is the quarterly synthesis of a Shaping Tomorrow intelligence cycle on the **River Hamble Harbour Authority**. It sits on top of weekly Signal Scans that identify emerging developments and weak signals, and monthly Change Trackers that assess what is materially shifting in momentum. Cycles may also close with Action Triggers, an end-of-cycle synthesis that reads across all four formats and surfaces patterns no single deliverable carries on its own. Continuous intelligence on this topic is available as a Single-Topic or Multi-Topic programme.

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